appropriated shall become subject to such settlement application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from January 24, 1948, to February 13, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on February 13, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Anchorage, Alaska, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 65 and 66 of Title 43 of the Code of Federal Regulations and applications under the small tract act of June 1, 1938, shall be governed by the regulations contained in Part 257 of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Anchorage, Alaska.

The lands affected by this order are the public lands in the following-described areas:

SEWARD MERIDIAN

T. 1 N., R. 1 E., partly unsurveyed,
Sec. 5, W½;
Secs. 6, and 7;
Sec. 8, W½;
Sec. 18;
Sec. 19, W½;
Sec. 30, W½;
Sec. 31, W½.
T. 1 N., R. 1 W.,
Sec. 1, lots 1, 5, and 6, and SE¼NE¼;
Sec. 12, lots 4 to 8, inclusive, W½NW¼NE¼; W½SW¼NE¼, SE¼SW¼, W½W½NW¼SE¼, and S½SE¼;
Sec. 13, E½ and E½W½;
Secs. 24 and 25;
Sec. 34, lot 5;
Sec. 35, lots 2, 4, 5, and SE¼;
Sec. 36.
T. 1 S., R. 1 W., partly unsurveyed,
Secs. 1 and 2;
Sec. 3, lot 1;
Sec. 12;
Sec. 13, that part north of South Fork of Fourth of July Creek.
T. 1 S., R. 1 E., unsurveyed,
Sec. 6, W½;
Sec. 7, W½;
Sec. 18, that part of W½ north of South Fork of Fourth of July Creek.

The areas described, including both public and non-public lands, aggregate approximately 8,000 acres.

With the exception of the public lands in the areas described above in secs. 34, 35, and 36, T. 1 N., R. 1 W., and in secs. 1, 2, 3, 12, and 13, T. 1 S., R. 1 W., the lands are within the Chugach National Forest pursuant to Proclamations No. 852 of February 23, 1909, and No. 1741 of May 29, 1925. Lot 3, sec. 2, T. 1 S., R. 1 W., is withdrawn by Executive Order No. 2533 of February 20, 1917.

Most of the land adjacent to Resurrection Bay is level to gently rolling, supporting little timber. The northern portion of the area contains little level land and is in general rough and broken.

WILLIAM E. WARNE,
Assistant Secretary of the Interior.

SEPTEMBER 11, 1947.

[F. R. Doc. 47-8476; Filed, Sept. 17, 1947; 8:45 a. m.]

[Public Land Order 406]

ALASKA

REVOKING EXECUTIVE ORDER 2259 OF OCTOBER 14, 1915, WITHDRAWING CERTAIN PUBLIC LANDS IN ALASKA AND RESERVING THEM FOR USE OF ALASKAN ROAD COMMISSION

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943 (8 F. R. 5516), it is ordered as follows:

Executive Order No. 2259 of October 14, 1915, withdrawing the following-described lands in Alaska for the use of the Alaskan Road Commission, now the Alaska Road Commission, in the construction, operation, and maintenance of the Valdez-Fairbanks Military Road, is hereby revoked:

A tract of land one mile wide on each side of the Valdez-Fairbanks Military Road, and extending from mile post No. 3, from Valdez, to mile post No. 12, from Valdez.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on November 13, 1947. At that time the lands, which are all unsurveyed, shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to settlement and other forms of appropriation in accordance with applicable public-land laws and regulations.

The above withdrawal covers a tract of land one mile wide on each side of the Richardson Highway, extending from mile post 3 to mile post 12 from Valdez, Alaska. The land north of the road is in general rough and mountainous. The Lowe River lies south of and adjacent to the road and most of the land is river flats, supporting little vegetation.

WILLIAM E. WARNE,
Assistant Secretary of the Interior.

SEPTEMBER 11, 1947.

[F. R. Doc. 47-8477; Filed, Sept. 17, 1947; 8:51 a. m.]

[Public Land Order 407]

VIRGIN ISLANDS

REVOKING PUBLIC LAND ORDER 170 OF SEPTEMBER 24, 1943, RESERVING LAND FOR USE OF WAR DEPARTMENT

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943 (8 F. R. 5516), it is ordered as follows:

Public Land Order No. 170 of September 24, 1943, transferring jurisdiction over certain land owned by the United States on the Island of Saint Croix, Virgin Islands, from the Department of the Interior to the War Department, and reserving the land for military purposes, is hereby revoked.

The jurisdiction over and use of such land granted to the War Department by Public Land Order No. 170 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such land shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

SEPTEMBER 12, 1947.

[F. R. Doc. 47-8478; Filed, Sept. 17, 1947; 8:51 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[Rev. S. O. 394]

PART 95—CAR SERVICE

FREE TIME REDUCED ON REFRIGERATOR CARS AT PORTS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 12th day of September A. D. 1947.

It appearing, that there is a shortage of refrigerator cars and that free time published in tariffs for loading and unloading such cars at ports aggravates the shortage thereof; in the opinion of the Commission an emergency exists requiring immediate action at all ports: it is ordered, that no common carrier by railroad, subject to the Interstate Commerce Act, shall:

§ 95.394 *Free time on refrigerator cars*—(a) *Free time reduced.* Allow, grant or permit more than 5 days free time (computed in accordance with applicable tariff provisions) on refrigerator cars held for loading or unloading in coastwise, intercoastal or foreign commerce at the point of transshipment from car to vessel or vessel to car or when held short of such transfer point. The provisions of this paragraph shall not be construed to require or permit the increase of the free time published in tariff lawfully on file with this Commission.

(b) *Definition of refrigerator car.* The term "refrigerator car" as used in this section means freight equipment described under the caption Class "R"—Refrigerator Car Type in the Official Railway Equipment Register.

(c) *Effective date.* This section shall become effective at 7:00 a. m., September 22, 1947.

(d) *Expiration date.* This section shall expire at 7:00 a. m., February 5, 1948, unless otherwise modified, changed, suspended or annulled by order of this Commission.

(e) *Tariff provisions suspended.* The operation of all tariff rules, regulations, or charges insofar as they conflict with the provisions of this section is hereby suspended.

(f) *Announcement of suspension.* Each railroad, or its agent shall publish, file, and post a supplement to each of its tariffs affected thereby, in substantial accordance with the provisions of Rule 9 (k) of the Commission's Tariff Circular No. 20 (§ 141.9 (k) of this chapter) announcing the suspension of the operation of any of the provisions therein, and establishing the substituted provisions set forth in this section.

It is further ordered, that this order shall vacate and supersede Service Order No. 394, as amended, on the effective date hereof; a copy of this order and direction shall be served upon each State Commission and upon the Association of American Railroads, Car Service Division, as Agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1 (10)–(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 47-8503; Filed, Sept. 17, 1947; 8:55 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Office of Indian Affairs

[25 CFR, Part 130]

AHTANUM, TOPPENISH-SIMCOE, AND WAPATO INDIAN IRRIGATION PROJECTS, WASHINGTON; OPERATION AND MAINTENANCE CHARGES

NOTICE OF PROPOSED RULE MAKING

SEPTEMBER 9, 1947.

Pursuant to section 4 (a) of the Administrative Procedure Act of June 11, 1946 (60 Stat. 238), and authority contained in the acts of Congress approved August 1, 1914; May 18, 1916; and March 7, 1928 (38 Stat. 583, 25 U. S. C. 385, 39 Stat. 154, and 45 Stat. 210, 25 U. S. C. 387) and by virtue of authority delegated by the Commissioner of Indian Affairs to the undersigned, District Director, District No. III, Portland, Oregon, September 14, 1946 (11 F. R. 10267; 25 CFR 02.8), notice is hereby given of intention to modify §§ 130.1, 130.73 and 130.86 of Title 25, Code of Federal Regulations, dealing with operation and maintenance assessments against irrigable lands of the Ahtanum Indian Irrigation Project, Toppenish-Simcoe Indian Irrigation Project, and Wapato Indian Irrigation Project, all of the Yakima Indian Reservation, Washington, as follows:

Ahtanum Indian Irrigation Project (§ 130.1): By increasing the annual operation and maintenance charge per acre from $1.00 to $1.50 for each irrigable acre of land to which water can be delivered from the project works.

Toppenish-Simcoe Indian Irrigation Project (§ 130.73): By increasing the annual operation and maintenance charge per acre from $0.75 to $1.00 for each acre of land for which application for water is made and approved by the Project Engineer.

Wapato Indian Irrigation Project (§ 130.86): (1) By increasing the annual "Flat Rate" for each assessable acre upon all farm units or tracts from $2.00 to $2.50, and (2) By increasing the annual storage operation and maintenance charges for all lands with a storage water right, known as "B" lands from $0.20 per acre to $0.30 per acre, in addition to other charges per acre.

The foregoing proposed changes are to become effective for the irrigation season 1948 and continue in effect thereafter until further notice.

Interested persons are hereby given opportunity to participate in preparing the proposed amendments by submitting their views and data or argument in writing to E. Morgan Pryse, District Director, U. S. Indian Service, Building 34, Swan Island, Portland 18, Oregon, within 30 days from the date of publication of this notice of intention in the daily issue of the FEDERAL REGISTER.

E. MORGAN PRYSE, *District Director.*

[F. R. Doc. 47-8474; Filed, Sept. 17, 1947; 8:45 a. m.]

NOTICES

TREASURY DEPARTMENT

United States Coast Guard

[CGFR 47-46]

APPROVALS AND TERMINATION OF APPROVAL OF EQUIPMENT

By virtue of the authority vested in me by R. S. 4405 and 4491, as amended (46 U. S. C. 375, 489), and section 101 of the Reorganization Plan No. 3 of 1946 (11 F. R. 7875), as well as the additional authority cited with each class of equipment, the following approvals and termination of approval are prescribed:

FIRE INDICATING AND ALARM SYSTEMS

Fire alarm station, manual, Dwg. No. 55-111, Alt. O; and fire alarm station, test, Dwg. No. 55-112, Alt. O; for use with Henschel Corp. 55-100 series fire alarm annunciators; manufactured by Henschel Corp., Amesbury, Mass.

BOILERS, HEATING

Approval No. 162.003/36/0, Erie City Iron Works, #1210, 42 inch diameter welded vertical fire tube heating boiler, heating surface 284 square feet, maximum pressure 30 p. s. i., Dwg. No. 81293, dated 30 August 1947, manufactured by Erie City Iron Works, Erie, Pa.

FIRE EXTINGUISHERS, HAND, PORTABLE CARBON-DIOXIDE TYPE

Approval No. 162.005/15/0, Kidde Model 10T, 10 lb. carbon dioxide hand portable fire extinguisher, Assembly Dwg. No. 82507, Rev. A, dated 27 September 1945, name plate Dwg. No. 82508, Rev. A, dated 4 October 1945, manufactured by Walter Kidde & Co., Inc., 675 Main Street, Belleville, N. J.

Approval No. 162.005/16/0, Kidde Model 15T, 15 lb. carbon dioxide hand portable fire extinguisher, Assembly Dwg. No. 82088, Rev. B, dated 29 August 1945, name plate Dwg. No. 82307, Rev. A, dated 19 September 1945, manufactured by Walter Kidde & Co., Inc., 675 Main Street, Belleville, N. J.

TERMINATION OF APPROVAL OF KAPOK LIFE PRESERVER

The following approval of a kapok life preserver is terminated because it is no longer being manufactured; termination of approval No. 160.002/19/0, Model 2, Adult kapok life preserver, USCG Specification 160.002, manufactured by C. A. Reed Furniture Co., 4424 East 49th Street, Los Angeles 11, Calif. (Approval published in FEDERAL REGISTER 31 July 1947, 12 F. R. 5186.)